



POLICE DEPARTMENT

October 25, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202304127 (Incident Date: May 2, 2023) regarding Police Officer Omar Aguilar-Martinez, Tax No. 963837 (DADS No. 2024-31656)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202304127, pertaining to Police Officer Omar Aguilar-Martinez. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Aguilar-Martinez would be detrimental to the Police Department's disciplinary process.

In this matter, Officer Aguilar-Martinez stopped, questioned, and frisked an individual he believed to be concealing a firearm in his right jacket pocket. The officer believed the heavy object, which made a J-shaped outline in the individual's pocket, was a firearm. At a crime and drug prone location, the officer approached the individual, stopped him, asked him if he was carrying contraband, frisked the location where he believed the weapon to be, and gave the individual his business card. The Police Commissioner, having reviewed the available evidence, finds that Officer Aguilar-Martinez's actions to be within guidelines and that his stop, question, and frisk of the individual to be proper.

Additionally, given that Officer Aguilar-Martinez had reasonable suspicion to stop and frisk the individual, it is inconsequential as to whether or not he properly received consent to search the individual. Further, the Police Commissioner finds that Officer Aguilar-Martinez accidentally putting two fingers inside the jacket pocket, while engaging in the protective measure of removing the individual's hand from said pocket, did not constitute a search. However, Officer Aguilar-Martinez did fail to prepare a stop report for this incident.

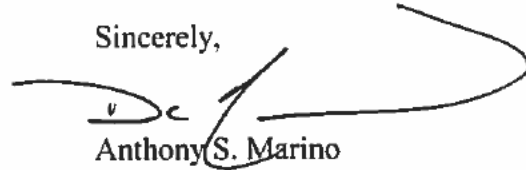
Officer Aguilar-Martinez has no formal disciplinary history, no prior substantiated CCRB cases, and has an exemplary record within the Department. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this

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matter, intends to impose no disciplinary action for the alleged misconduct. Separate and apart, the Police Commissioner intends to direct that Police Officer Aguilar-Martinez receive formalized training in the preparation of consent-to-search reports and stop reports.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



November 1, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Omar Aguilar-Martinez
Disciplinary Case No.: 2024-31656

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 25, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Police Officer Aguilar-Martinez would be detrimental to the Police Department’s disciplinary process” and you intend to retain jurisdiction over this matter and “impose no disciplinary action for the alleged misconduct” but intend “to direct that Police Officer Aguilar-Martinez receive formalized training in the preparation of consent-to-search reports and stop reports.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Aguilar-Martinez and permit CCRB to prosecute this case. While Police Officer Aguilar-Martinez stated that he saw a “J-shape[d]” bulge outlined within the complainant’s coat pocket, which he believed to be indicative of an “upside down” “revolver,” lead to his reasonable suspicion that the complainant was armed and dangerous, the BWC footage in this case does not match up with Police Officer Aguilar-Martinez’s description. As depicted in the BWC video footage, upon exiting the patrol vehicle, the shape of the bulge in the complainant’s coat pocket became clearer to the officer, which led him to question the complainant and frisk the complainant’s pocket. However, despite the BWC video footage depicting a weighted bulge in the complainant’s right coat pocket, the video footage clearly depicts the pocket and does not capture a discernible outline given the shape and material of the winter coat. Thus, the video footage does not seem to support Police Officer Aguilar-Martinez’s description of the bulge.

In *People v. Black*, the court determined that although the defendant had a “heavy object of substantial size,” at his waist, without a clear nexus between a specific firearm-involved crime while showing largely innocuous reactions to police presence, the officers fell short of founded suspicion that the individual carried a firearm. Furthermore, in *People v. DeBour*, the court established that unlike waistband bulges, a pocket bulge could be caused by any number of innocuous objects, as also supported by *People v. Taveras*, and that a person’s innocuous behavior alone is not adequate basis for reasonable suspicion. Given that the investigation has determined that Police Officer Aguilar-Martinez did not have a founded nor reasonable suspicion to believe the complainant was concealing a firearm, Police Officer Aguilar-Martinez had no basis to stop, to question, nor to frisk the complainant.

In addition, the BWC video footage clearly shows Police Officer Aguilar-Martinez’s fingers within the complainant’s coat pocket, despite Police Officer Aguilar-Martinez’s statement to the contrary, prior to the complainant stating any consent for such a search. Police Officer Aguilar-Martinez stated that he made physical contact with the complainant’s pocket prior to the complainant giving verbal consent because the complainant had given consent beforehand when the complainant allowed the officer to “check” his fanny pack. As previously discussed above, Police Officer Aguilar-Martinez did not have a reasonable suspicion to frisk the complainant and the BWC video footage shows that the search of the complainant’s pocket occurred at the same time as the frisk of the complainant. Police Officer Aguilar-Martinez’s actions not only violate the Patrol Guide for searches of persons, but also violates the principle in *People v. DeBour* that states that an officer must first conduct a frisk of the area and if said frisk reveals an object that is reasonably believed to be a weapon, the officer may then conduct a search. Police Officer Aguilar-Martinez stated that the results of his frisk indicated that the pocket held a cell phone and a portable charger, and this alone would not justify Police Officer Aguilar-Martinez’s search of the complainant’s pocket without consent. Police Officer Aguilar-Martinez’s search of the complainant’s pocket was therefore improper, based on lack of consent and lack of reasonable suspicion the pocket contained a weapon.

By not imposing any disciplinary action for this misconduct but directing that Police Officer Aguilar-Martinez receive formalized training in the preparation of consent-to-search reports and stop reports, it grossly diminishes the seriousness of this misconduct. Police Officer Aguilar-Martinez must be held accountable for this misconduct and CCRB should be permitted to prosecute this case. CCRB disagrees with your intention of retaining jurisdiction and imposing no disciplinary action for the misconduct in this case and only directing that Police Officer Aguilar-Martinez receive formalized training in the preparation of consent-to-search reports and stop reports. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Aguilar-Martinez.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 1, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

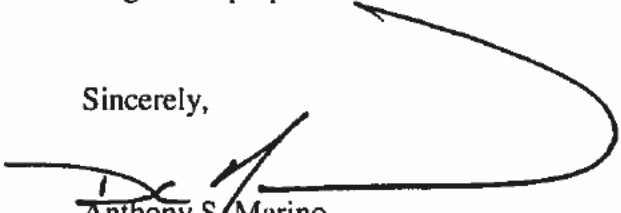
Re: CCRB Case No. 202304127 (Incident Date: May 2, 2023) regarding Police Officer Omar Aguilar-Martinez, Tax No. 963837 (DADS No. 2024-31656)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 1, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Omar Aguilar-Martinez, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Aguilar-Martinez for the reasons expressed in my October 25, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Aguilar-Martinez receive no disciplinary action for the alleged misconduct. Separate and apart, the Police Commissioner directs that Police Officer Aguilar-Martinez receive formalized training in the preparation of consent-to-search reports and stop reports.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office